

25STLC05887 25STLC05887

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-13

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Case Number: 25STLC05887 Hearing Date: July 13, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff Deere & Company's Motion to Deem Admitted

Requests for Admission and Request for Sanctions is granted. Defendant Violeta

S. Salinas is ordered to pay sanctions of \$485.00 to Plaintiff's counsel within 20 days' service of this order.

Analysis:

Plaintiff Deere & Company ("Plaintiff") served Requests

for Admissions, Set One, on Defendant Violeta S. Salinas on April 3, 2026. (Motion, Frueh Decl., Exhs. 1-2.) As of the filing of the instant Motion to Deem Admitted Requests for Admission and Request for Sanctions on May 20, 2026, Defendant has not served responses to the discovery. (Id. at ¶6.) Plaintiff now moves for an order deeming the Requests for Admission admitted pursuant to Code of Civil Procedure section 2033.280. Plaintiff served the Motion on Defendant by first-class mail on the same day it was filed, but no opposition has been filed to date.

There is no requirement for a prior meet and confer effort before a motion to deem requests for admission can be filed. (Code Civ. Proc., § 2033.280.) Further, the motion can be brought at any time after the responding party fails to serve responses. (Code Civ. Proc., § 2033.280.) Due to Defendant's failure to timely serve verified responses and resultant waiver of objections, Plaintiff is entitled to an order deeming the Requests for Admission admitted. (Code Civ. Proc., § 2033.280.)

The Court is required to award sanctions under the moving

statute. (Code Civ. Proc., § 2033.280, subd. (c).) However, the amount sought is excessive for an unopposed motion to deem admissions admitted. Sanctions are granted against Defendant in the amount of \$485.00 based on one hour of attorney time billed at \$425.00 per hour, plus the \$60.00 filing fee. (Motion, Frueh Decl., ¶¶7-8.)

Conclusion

Plaintiff Deere & Company's Motion to Deem Admitted

Requests for Admission and Request for Sanctions is granted. Defendant Violeta S. Salinas is ordered to pay sanctions of \$485.00 to Plaintiff's counsel within 20 days' service of this order.

Moving party to give notice.